

		Defendant contends that he was served on 8/8/24 (though he contests that service was proper) and filed his motion to quash on 9/6/24. Default was entered that same day, on 9/6/24, and Defendant contends that default was entered in violation of Code Civ. Proc. § 418.10, subd. (d), which provides: “No default may be entered against the defendant before expiration of his or her time to plead.” However, the proof of service provides that Defendant was personally served with the complaint, summons, ADR package and civil case cover sheet on 7/17/24. (See POS [ROA 12]). Therefore, this argument fails. Defendant also argues that Defendant filed his motion to quash (he filed two, one in person and one electronically) the same day that the default was entered. He argues that his motions to quash were either still pending or not yet administratively processed when the default was entered. Plaintiffs did not address this argument in their Reply. The only arguments Plaintiffs present against Code Civ. Proc. § 473, subd. (d) is that there is a valid proof of service on file, that Defendant was actually served, and that a self-serving denial of receipt does not rebut that presumption of proper service. While these may be proper arguments in opposition to the motion to quash, Plaintiffs do not address the <u>timing</u> of the filing of the motion to quash and whether the filing precluded Plaintiffs from obtaining default. It is axiomatic that the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 (“By failing to argue the contrary, plaintiffs concede this issue”); <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 (“failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot”); <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).) Accordingly, the motion is granted. Defendant shall give notice.
9	Irvine Westpark Plaza LLC vs. Diesel 1 LLC	TENTATIVE RULING: Counsel Constantine Panagotacos and James Higgins of Dunn & Panagotacos LLP move to be relieved as counsel for the following Defendants: Diesel 1 LLC, 100 Percent Health Management, LLC,

		Nigel Stobart, Kim Stobart, Brandon Livingood, and Rebecca Livingood. For the reasons set forth below, the court CONTINUES the motion to August 19, 2026, at 9:00 a.m. in this Department. The court is inclined to grant the motions. However, the motions set forth the hearing dates of August 19, 2026, August 26, 2026, and September 2, 2026, and there is nothing in the record showing that notice of the advanced hearing date of 6/17/26 was provided to Defendants. Accordingly, the court orders Moving Counsel to give notice of the new hearing date for the instant motions. The court also orders Moving Counsel to file and serve new proposed orders reflecting the new pretrial conference and trial dates in Paragraphs 7 and 9 of the Orders (MC-053). Moving counsel shall give notice of the continued hearing date, including to the clients and all other parties who have appeared in the action, in compliance with Code Civ. Proc. § 1005, and file the proof of service of the notice at least five court days before the continued hearing date. Moving counsel to give notice.
10	Jas Partnership vs. Convirgent Technologies LLC	TENTATIVE RULING: For the reasons set forth below, Defendant and Cross-Complainant Convergint Technologies LLC’s motion to continue trial is GRANTED. Trial is continued to April 5, 2027, at 9:00 a.m. in this Department. The pretrial conference is continued to April 2, 2027, at 9:00 a.m. in this Department. The discovery and motion deadlines are continued pursuant to Code Civ. Proc. § 2024.020. <u>Statement of Law</u> “A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the